

25STCP04627 25STCP04627

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 25STCP04627 Hearing Date: August 14, 2026 Dept: 833

Stand Up for Pits Foundation Case No. 25STCP04627

v.

Hearing:

August 14, 2026

Location:

Stanley Mosk Courthouse

Department:

833

City of Los Angeles, et. al., Judge:

Joseph Lipner

[Tentative] Order Sustaining

Demurrer to Petition for Writ of Mandate

Respondents City of Los Angeles

("City"), Los Angeles Animal Services ("LAAS"), Los Angeles Police Department ("LAPD"), Karen Bass, and Annette Ramirez ("Respondents") demur to the entirety of the Petition ("Petition") filed by Petitioner Stand up for Pits Foundation ("Petitioner"). Respondents also move to strike various portions of the Petition.

The Court SUSTAINS the Demurrer to

the first three claims with NO LEAVE TO AMEND. The Court SUSTAINS the Demurrer to the fourth claim with LEAVE TO AMEND. Since the mandamus actions have been dismissed, the Court will transfer the remainder of the case to Department 534

(formerly Department 1) so that a third amended petition raising only negligence can proceed in an unlimited civil court.

The motion to strike is MOOT as a result of the Court's ruling on the demurrer.

BACKGROUND

According to the Petition, Respondents bear statutory duties to care for impounded animals humanely, to enforce California's animal anti-cruelty laws, and to comply with the California Public Records Act ("CPRA") and other state transparency laws.

The petition alleges that Respondents have repeatedly failed to provide veterinary care to animals in city custody, causing unnecessary suffering and imposing financial burdens on rescue organizations subsequently assuming responsibility. The petition also alleges that Respondents have failed to provide appropriate shelter to animals in the city's care, including causing unnecessary suffering and health risks. Examples of those conditions include a failure to clean kennels, a failure to provide clean water, animals who suffer after spaying and neutering surgeries, and animals who are left tethered and starving.

Petitioner also alleges that the City has exhibited gross negligence and animal cruelty within shelters. Petitioner has been forced to expend substantial resources rescuing and rehabilitating animals the City failed to move, and has incurred at least \$50,319 in veterinary and care expenses for dogs saved from Skid Row.

After seeking to and failing to resolve the issues directly with Respondents, Petitioner now seeks judicial intervention compelling Respondents to comply with state law, fulfill their statutory duties, and implement remedial measures to protect public welfare and prevent ongoing animal cruelty.

Petitioner has brought four claims, all under the asserted rubric of a petition for writ of mandate: (1) Violations of the Public Records Act; (2) Violations of Civil Code Section 1834; (3) Violations of Civil Code Section 1846; and (4) Negligence – Failure to Enforce Penal Code Section 597.

LEGAL STANDARD

A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civil Proc. § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We assume the truth of the allegations in the complaint, but do not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State* (2008) 161 Cal.App.4th 242, 247.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters." (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The allegations in the petition must be liberally construed in favor of Petitioner on demurrer. (See *Mobil Oil Corp. v Exxon Corp.* (1986) 177 Cal.App.3d 942, 947.) "A demurrer must dispose of an entire cause of action to be sustained." (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

JUDICIAL NOTICE

The Court grants
Respondents' request for judicial notice ("RJN").

DISCUSSION

First Claim: Violation of the
California Public Records Act

Government
Code Section 7922.535 provides:

Each agency, upon a request for a copy of records, shall, within 10 days from receipt of the request, determine whether the request, in whole or in part, seeks copies of disclosable public records in the possession of the agency and shall promptly notify the person making the request of the determination and the reasons therefor. If the agency determines that the request seeks disclosable public records, the agency shall also state the estimated date and time when the records will be made available.

To

bring a CPRA violation claim, a party must show that the files (1) qualify as public records and (2) were in possession by the agency that the party has requested the records from. (Board of Pilot Commissioners v. Superior Court (2013) 218 Cal.App.4th 577, 598.)

Here, the Petition alleges that Petitioner submitted a public records request to LAAS on September 15, 2025, and LAAS has continued to roll its documents production, providing some documents at a time every few weeks to few months. (Petition, ¶¶ 47, 52.) Petitioner alleges that the LAAS is violating the law by not producing documents fast enough. (Petition, ¶ 56; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 254 [explaining documents under the PRA must be produced “promptly”].)

This allegation fails as a matter of law. In Voice of San Diego v. San Diego Unified School Dist. (2026) 120 Cal.App.5th 923, 942, the Court of Appeal rejected an argument that “promptly available” means production of records must be made within “a few days or weeks, not months or years.” The Court of Appeal explained that statutes are to be interpreted by the language in which they are written, and the way the PRA is written, there is no requirement that documents are produced in a certain period of time. Therefore, Petitioner cannot bring a claim based on the premise that documents are not being produced fast enough.

Petitioner also argues that they are bringing a CPRA claim against LAPD because LAPD did not state what information was being withheld as a response to a different public records request. (Petition, ¶ 64.) Finally, Petitioner argues that LAPD did not produce any relevant documents and instead directed Petitioner to an open data portal. (Petition, ¶ 65.)

This allegation also fails as a matter of law. Government Code Section 7922.545, subd. (a) allows a public agency to post public records on its website and direct members of the public to the location on the internet website where the public record is posted. LAPD provided detailed information about how to use the public website. (RJN, Exh. A.) LAPD accurately described what records were being withheld: investigatory records compiled by law enforcement. (RJN, Exh. A.)

Petitioner does not

even seek to respond to the demurrer's arguments about this claim in the Opposition. Therefore, Petitioner has not met its burden to show that the claim could be amended successfully.

Accordingly, the Court

SUSTAINS the demurrer to the first claim WITHOUT LEAVE TO AMEND.

Second and Third Claim: Violation
of Civil Code Section 1834 and 1846

A party seeking writ relief under section 1085 must show three things: (1) There is no other plain, speedy, and adequate remedy in the ordinary course of law; (2) The respondent has a clear, present, and ministerial duty to act in a particular way; and (3) The petitioner has a clear, present, and beneficial right to the performance of that duty. (Code Civ. Proc. §§ 1085, subd. (a); 1086.)

When a statute or ordinance defines the specific duties or course of conduct that a governing body must take, the course of conduct becomes mandatory and eliminates any element of discretion. (*Senior & Disability Action v. Weber* (2021) 62 Cal.App.5th 357, 364.) A statute imposes a mandatory duty on a public official only if the statute affirmatively imposes the duty and provides implementing guidelines. (*Physicians Committee for Responsible Medicine v. Los Angeles Unified School Dist.* (2019) 43 Cal.App.5th 175, 185 (*Physicians Committee*).) Mandamus does not lie to compel a public agency to exercise discretionary powers in a particular manner, only to compel it to exercise its discretion in some manner. (*Ibid.*) Mandamus may also lie to require an official to exercise his discretion under a proper interpretation of the applicable law. (*Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432, 442.) Whether a particular statute imposes a mandatory duty is a question of statutory interpretation for the courts. (*Physicians Committee*, *supra*, 43 Cal.App.5th at p. 185.)

Civil

Code Section 1834 provides:

A depositary of living animals shall provide the animals with necessary and prompt veterinary care, nutrition, and shelter, and treat them kindly. Any depositary that fails to perform these duties may be liable for civil damages as provided by law.

(Civ. Code § 1834.)

Civil Code Section 1846

provides:

(a) A

gratuitous depositary must use, at least, slight care for the preservation of the thing deposited.

(b) A

gratuitous depositary of a living animal shall provide the animal with necessary and prompt veterinary care, adequate nutrition and water, and shelter, and shall treat it humanely and, if the animal has any identification, make reasonable attempts to notify the owner of the animal's location. Any gratuitous depositary that does not have sufficient resources or desire to provide that care shall promptly turn the animal over to an appropriate care facility.

(c)

If the gratuitous depositary of a living animal is a public animal shelter, shelter operated by a society for the prevention of cruelty to animals, or humane shelter, the depositary shall comply with all other requirements of the Food and Agricultural Code regarding the impounding of live animals.

(Civ. Code § 1846.)

Respondents

argue that both Civil Code Section 1834 and Section 1846 provides the City expansive discretion as to what is “necessary” veterinary care for any particular animal’s circumstances and what amounts to “kind” and “humane” treatment.

Petitioner argues that

Civil Code Section 1834 and Section 1846 include ministerial duties and that Petitioner requests that Respondents comply with the statutory floor established by the Legislature. Petitioner further argues that Respondents have violated the obligations imposed by Civil Code section 1834 and 1846.

(Petition, ¶¶ 73-80, 93-100.)

A

writ of mandate will not issue if a duty is mixed with discretionary power. (Childhelp, Inc. v. City of Los Angeles (2023) 91 Cal.App.5th 224, 239 (Childhelp).)

Here, Petitioner is right that there is a duty to provide necessary veterinary care and to treat animals kindly. However, Respondents are correct that City officials have discretion to determine how to carry out those duties. When a duty is mixed with discretionary power, like it is here, a writ of mandate will not issue. (California High-Speed Rail Authority v. Superior Court (2014) 228 Cal.App.4th 676, 715.)

Petitioner

does propose additional amendments that can be added to another amended petition, such as the City's failure to provide veterinary treatment for treatable medical conditions and the City's decisions to euthanize animals rather than provide necessary medical care. (Opposition, 9:2-6.)

Neither

amendment would fix the underlying issue with the petition: when a duty is mixed with discretionary power, a writ of mandate cannot issue.

Petitioner

has not shown a likelihood that either two claims can be amended to state good causes of action.

Therefore,

the Court SUSTAINS the demurrer to the second and third causes of action with NO LEAVE TO AMEND.

Fourth Claim: Negligence

A public entity in California is not liable for a tortious injury caused by an act or omission of a public entity or public employee or any other person, except as otherwise provided by statute. (Gov. Code, § 815, subd. (a).) All government tort liability must be based on statute. (Hoff v. Vacaville Unified School Dist. (1998) 19 Cal.4th 925, 932.)

Petitioner alleges that Respondents have negligently ignored dangerous conditions that plague City shelters and the streets of the Skid Row.

(Petition, ¶ 111.) Petitioner argues that liability for this exists under Government Code Section 835, Section 815.6, and Section 820.

Government

Code Section 835 states that:

a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or the public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

Additionally,

Government Code section 815.6 provides that “[w]here a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.”

Government

Code Section 820 provides that, “Except as otherwise provided by statute... a public employee is liable for injury caused by his act or omission to the same extent as a private person.”

Respondents

argue that this cause of action is problematic because it relies on Penal Code Section 597. There is no private right of action to enforce an alleged violation of Penal Code Section 597. (*Animal Legal Defense Fund v. California Exposition & State Fairs* (2015) 239 Cal.App.4th 1286, 1298.) However, the Court interprets the fourth claim as relying on Government Code Section 835, which provides a carveout from the general rule that public entities are not liable for negligence.

Respondents argue that that the cause of action is also

problematic because it does not plead every element of the negligence claim with specificity. To state a cause of action against a public entity, every act material to the existence of its statutory liability must be pleaded with particularity. (Peter W. v. San Francisco Unified School District (1976) 60 Cal.App.3d 814, 819.) It is a little unclear from the pleading what the “dangerous condition” is and Petitioner has not pled that it was reasonably foreseeable that the dangerous condition would lead to the injuries described in Paragraphs 119 and 120.

Finally, Respondents argue that Petitioner’s damages claims are defective because Petitioner has not filed leave to file a late claim against the government, and claims for personal injury must be presented no later than six months after the accrual of the cause of action. (Gov. Code § 911.2, subd. (a).) An application for leave to file a late claim must be made no more than one year after the accrual of a cause of action. (Gov. Code § 911.4, subd. (b).) There are no allegations that Petitioner obtained leave to file a late claim. Additionally, only one of the allegations mentioned in Paragraph 125 occurred under a year ago. Therefore, Petitioner cannot proceed with the negligence claim as currently pled.

The Court SUSTAINS the demurrer to the fourth claim. There seems to be a reasonable probability that the fourth claim can be amended to solve the defects identified by the Court, so there will be LEAVE TO AMEND as to this claim only.

Inclusion of Karen Bass and
Annette Ramirez as Respondents

Respondents argue that Karen Bass and Annette Ramirez must be dismissed as parties. The Court makes no ruling on this matter because the Court has sustained the demurrer to all claims.

CONCLUSION

The Court SUSTAINS the Demurrer to the first three claims WITHOUT LEAVE TO AMEND. The Court SUSTAINS the Demurrer to the fourth claim with LEAVE TO AMEND. Since the mandamus actions have been dismissed, the Court transfer the case to Department 534 (formerly Department 1) for reassignment to an independent calendar court so that a third amended

petition raising only negligence can proceed in an unlimited civil court.

The
motion to strike is MOOT as a result of the Court's ruling on the demurrer.

IT
IS SO ORDERED.

Dated: August 14,
2026

Joseph
Lipner

Superior
Court Judge